

**BEFORE THE
FEDERAL MARITIME COMMISSION**

DOCKET NO. 24-16

Samsung Electronics America, Inc.

v.

COSCO Shipping Lines Co. Ltd.

v.

**Samsung Electronics Co., Ltd., Samsung Electronics Logitech Co., Ltd., and Samsung SDS
Global SCL Asia Pacific PTE LTD**

**COSCO'S MOTION TO PERMIT ALTERNATIVE
SERVICE UNDER FED. R. CIV. P. 4(f)(3)**

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INTRODUCTION

As set forth in its response to the motion to dismiss of Samsung Electronics Company, Ltd. (“SEC”), Samsung SDS Global SCL Asia Pacific PTE LTD (“SDS”), and Samsung Electronics Logitech Company, Ltd. (“Logitech”) (collectively, “Third-Party Respondents”)¹, Third-Party Complainant COSCO Shipping Lines Co., Ltd. (“COSCO”), respectfully submits that service under the Commission’s regulations is lawful, and that COSCO additionally has initiated service on Third-Party Respondents under the Convention on Service Abroad of Judicial and Extrajudicial Documents in Civil and Commercial Matters, Nov. 15, 1965, T.I.A.S. No. 6638, 20 U.S.T. 361 (“Hague Convention” or the “Convention”). COSCO respectfully moves here, in the alternative, for an order under Fed. R. Civ. P. 4(f)(3) permitting it to effect service by serving Third-Party Respondents’ U.S. legal counsel (Mr. Hohenstein) by email or physical delivery, or for such other alternative means of service as the Presiding Officer may direct. That order would permit service to be made expeditiously and avoid the multi-month delays and excess use of the Commission’s resources that would result from service under the Convention.

LEGAL STANDARD

Although the relief sought in this motion is not explicitly prescribed in the Commission’s rules, a party may bring such a motion pursuant to the Federal Rules of Civil Procedure as applicable to Commission proceedings pursuant to 46 C.F.R. § 502.12. Fed. R. Civ. P. (4)(h) provides that absent a waiver or federal law to the contrary, a “foreign corporation” must be served “at a place not within any judicial district of the United States, in any manner prescribed by Rule 4(f) for serving an individual, except personal delivery under (f)(2)(C)(i).” Rule 4(f) in

¹ Third-Party Respondents say that the exact names of these entities are Samsung Electronics Co., Ltd. (SEC), Samsung SDS Asia Pacific Pte Ltd. (SDS), and Samsung Electronics Logitech Co., Ltd. (Logitech). *See* Decl. of James Hohenstein (Doc. 45) at ¶ 1.

turn permits service by several methods, including in subsection (3), “by other means not prohibited by international agreement, as the court orders.” Rule 4(f)(3).

“Service of process under Rule 4(f)(3) is neither a last resort nor extraordinary relief. It is merely one means among several which enables service of process on an international defendant.” *In re One Apus Container Ship Incident on November 30, 2022*, 22 Md. 3028 (PAE), 2022 WL 17370122, at *1 (S.D.N.Y. Dec. 2, 2022); *accord Rio Props., Inc. v. Rio Intern. Interlink*, 284 F.3d 1007, 1015 (9th Cir. 2002) (“neither a ‘last resort’ nor ‘extraordinary relief.’” (internal citation omitted); *Sec. Exch. Comm’n v. Richman*, Case No. 21-cv-01911-CRB, 2021 U.S. Dist. LEXIS 263304, at *8 (N.D. Cal. July 19, 2021). Importantly, the rule does not require a party to first seek service under the Convention. *Rio Props., Inc. v. Rio Intern. Interlink*, 284 F.3d at 1015; *Dolls Kill Inc. v. Yunye Apparel Retail Ltd.*, 2:23-cv-01979-HDV-JPR, 2023 U.S. Dist. LEXIS 173483, at *2 (C.D. Cal. Aug. 16, 2023); *In re One Apus Container Ship Incident on November 30, 2022*, 2022 WL 17370122, at *2; *Sec. Exch. Comm’n v. Richman*, 2021 U.S. Dist. LEXIS 263304, at *11; *Carrico v. Samsung Elecs. Co.*, Case No. 15-cv-02087-DMR, 2016 WL 2654392, at *3 (N.D. Cal. May 10, 2016). Service under Rule 4(f)(3) must, of course, provide sufficient notice to constitute due process. *In re One Apus Container Ship Incident on November 30, 2022*, 2022 WL 17370122, at *1; *Carrico v. Samsung Elecs. Co.*, 2016 WL 2654392, at *3; *Rio Props., Inc. v. Rio Intern. Interlink*, 284 F.3d at 1015 at 1016.

ARGUMENT

I. Courts have authorized alternative service under Fed. R. Civ. P. 4(f)(3) on foreign parties in countries who are signatories to the Hague Convention.

Numerous federal courts have permitted service of process under Rule 4(f)(3) on foreign parties whose countries are parties to the Convention to be made by other means, including by service on their counsel in the United States—including for parties located in Korea and in other

signatories to the Convention which have objected to service by postal channels under the Convention’s Article 10. *See e.g., Compañia de Inversiones Mercantiles, S.A. v. Grupo Cementos de Chihuahua S.A.B. de C.V.*, 970 F.3d 1269, 1294-1295 (10th Cir. 2020) (service on U.S. counsel for Mexican corporation was permissible notwithstanding Mexico’s objection to the service methods in Article 10 of the Convention); *Dolls Kill Inc. v. Yunye Apparel Retail Ltd.*, 2023 U.S. Dist. LEXIS 173483, at *2 (permitting service on Chinese Company by email); *Nexon Korea Corp. v. Ironmace Co.*, No. C23-576-MLP, 2023 WL 3599548, at *3 (W.D. Wash. May 23, 2023) (authorizing service on U.S. counsel of Korean company, notwithstanding Korea’s objections to the Convention); *In re One Apus Container Ship Incident on November 30, 2022*, 2022 WL 17370122, at *3 (authorizing service on U.S. counsel for South Korean corporation Hyundai Merchant Marine, notwithstanding the Convention); *Sec. Exch. Comm’n v. Richman*, 2021 U.S. Dist. LEXIS 263304, at *15 (permitting service on U.S. counsel, notwithstanding Germany’s objections); *Fed. Trade Comm’n v. Repair All PC, LLC*, Case No. 1:17 CV 869, 2017 WL 2362946, at *5 (N.D. Ohio May 31, 2017) (service on U.S. counsel notwithstanding India’s objection to Article 10); *Carrico v. Samsung Elecs. Co.*, 2016 WL 2654392, at *4 (authorizing service on Samsung Electronics Co., Ltd. employee through her attorney, notwithstanding Korea’s objections to service methods in the Convention); *In re Cathode Ray Tube (CRT) Antitrust Litig.*, 27 F. Supp. 3d 1002, 1010 (N.D. Cal. 2014) (authorizing service on Chinese company notwithstanding China’s objections to Convention’s service provisions). As the Tenth Circuit held in *Compañia*, that a country “does not authorize service methods beyond the use of that country’s central authority” is of no matter, because such alternative methods—in *Compañia*, service on U.S. counsel—is not “prohibited” by the Convention. *Compañia*, 970 F.3d at 1294.

II. Authorization for alternative process under Fed. R. Civ. P. 4(f)(3) should be granted.

Whether to authorize service under Rule 4(f)(3) rests in the tribunal's discretion. *In re One Apus Container Ship Incident on November 30, 2022*, 2022 WL 17370122, at *1; *Sec. Exch. Comm'n v. Richman*, 2021 U.S. Dist. LEXIS 263304, at *8. COSCO respectfully submits that if the Presiding Officer determines that service was not effectively accomplished through the Commission, the Presiding Officer should exercise her discretion to authorize service on the Third-Party Respondents' U.S. counsel (Mr. Hohenstein) to avoid the delays that would otherwise occur under the Convention. Avoiding such delays is especially appropriate here, because discovery is proceeding on Claimant Samsung Electronics America, Inc.'s claim against COSCO and COSCO's counterclaim. There is no reason for the Commission and the parties to expend the additional resources that would be required for the piecemeal litigation of the claims in this proceeding.

Moreover, there can be no question that service on Third-Party Respondents' counsel would constitute due process. Third-Party Respondents' counsel has been aware of this action since May 12, 2025, when COSCO sent him a copy of the Third-Party Complaint and he acknowledged its receipt. *See* email dated May 12, 2025 from J. Hohenstein, attached hereto as **Exhibit A**. Mr. Hohenstein made a special appearance to contest service. It cannot be said that Third-Party Respondents are not aware of the claims against them, or that Mr. Hohenstein lacks the ability to provide them with another copy of the Third-Party Complaint and the Commission's notice. *Nexon Korea Corp. v. Ironmace Co.*, 2023 WL 3599548, at *3 (when the defendant "receives notice of the suit through counsel, its highest-level employees... are highly likely to also be apprised of the suit" which "comports with due process."); *Carrico v. Samsung Elecs. Co.*, 2016 WL 2654392, at *4 (finding service on defendant's U.S. counsel

was “reasonably calculated to provide actual notice” to defendant in accordance with due process).

Finally, notwithstanding Third-Party Respondent SEC’s appearance in scores of actions in the U.S. (*see e.g.*, Decl. of Stacey Normington, Ex. A in *Samsung Elecs. America Inc. v. Orient Overseas Container Line, Limited et al.*, Dkt. No. 24-17, 2025 WL 516252 at *2 (FMC Feb. 13, 2025)), and the action brought by its subsidiary SEA, the Third-Party Respondents have refused to waive or accept service. *See* email dated June 19, 2025 from J. Hohenstein, attached hereto as **Exhibit B**. The motion for alternative service under Rule 4(f)(3) should be granted. *See Dolls Kill Inc. v. Yunye Apparel Retail Ltd.*, 2023 U.S. Dist. LEXIS 173483, at *2-3 (authorizing alternative service where service under Convention would cause delay); *Nexon Korea Corp. v. Ironmace Co.*, 2023 WL 3599548, at *3 (authorizing alternative service where service in Korea under the convention would take 4-6 months); *In re One Apus Container Ship Incident on November 30, 2022*, 2022 WL 17370122, at *3 (authorizing service on U.S. counsel where defendant rejected the request to waive service and service in Korea under the Convention “would take 6-to-8 months”)².

² On June 18, undersigned counsel for COSCO contacted the designated private contractor process server for the U.S. Central Authority, ABC Legal Services (<https://www.hcch.net/en/states/authorities/details3/?aid=279>) by telephone to inquire about the current estimated time to complete service in the Republic of Korea. A representative stated that it would take approximately six (6) months to complete service and receive a certificate of service from the Republic of Korea’s Central Authority.

CONCLUSION

For the foregoing reasons, COSCO respectfully requests that the Presiding Officer enter an order permitting it to serve Third-Party Respondents by alternative service pursuant to Fed. R. Civ. P. 4(f)(3).

Dated: June 23, 2025

Respectfully submitted,

/s/ Rebecca A. Fenneman

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***Attorneys for Third-Party Complainant,
COSCO Shipping Lines Co., Ltd.***

CERTIFICATE OF SERVICE

I certify that on the 23rd day of June, 2025, a true and correct copy of the foregoing document, **COSCO's Motion to Permit Alternative Service**, was served by email on all counsel of record in accordance with 46 CFR Part 502 and the Commission's Order of May 12, 2020.

ATTORNEYS FOR COMPLAINANT:

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HOHENSTEIN & PARKINSON, LLP

James H. Hohenstein
Jim.hoenestenin@hplawnyc.com

/s/ Martha Medina
Martha Medina

EXHIBIT A

From: Jim Hohenstein <jim.hohenstein@hplawnyc.com>
Sent: Monday, May 12, 2025 3:19 PM
To: Rebecca Fenneman
Cc: Eric Jeffrey; Nick Webb; Kaya Massey; Whittaker, Brian; Lang, Gordon; Medina, Martha
Subject: RE: FMC Docket No. 24-16 - SEA v. COSCO v. Samsung et al

[EXTERNAL E-MAIL]

Be Aware of Links and Attachments

Dear Rebecca,

Many thanks: I very much appreciate your courtesies!

Best regards, Jim

Jim Hohenstein
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385 South End Avenue, #5K
New York, NY 10280
email: jim.hohenstein@hplawnyc.com
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From: Rebecca Fenneman <rfenneman@jeffreyfenneman.com>
Sent: Monday, May 12, 2025 15:01
To: Jim Hohenstein <jim.hohenstein@hplawnyc.com>
Cc: Eric Jeffrey <EJeffrey@jeffreyfenneman.com>; Nick Webb <nwebb@jeffreyfenneman.com>; Kaya Massey <Kmassey@jeffreyfenneman.com>; Whittaker, Brian <bwhittaker@nixonpeabody.com>; Lang, Gordon <Glang@nixonpeabody.com>; Martha Medina <mmedina@nixonpeabody.com>
Subject: FMC Docket No. 24-16 - SEA v. COSCO v. Samsung et al

Dear Jim,

I hope this note finds you well.

In case you'll be representing respondents, I'm attaching a courtesy copy of the verified Third-Party Complaint filed by COSCO in the above-captioned proceeding today.

Very best,

Rebecca

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JEFFREY | FENNEMAN

LAW + STRATEGY, PLLC

*******PRIVILEGED AND CONFIDENTIAL COMMUNICATION*******

EXHIBIT B

From: Jim Hohenstein <jim.hohenstein@hplawnyc.com>
Sent: Thursday, June 19, 2025 5:57 PM
To: Lang, Gordon
Cc: Christopher R. Nolan (chris.nolan@hklaw.com); gerald.morrissey@hklaw.com; kristine.little@hklaw.com; allison.skopec@hklaw.com; Eric Jeffrey; Rebecca Fenneman; Kaya Massey; Nicholas Webb; Whittaker, Brian; Medina, Martha
Subject: RE: COSCO v. SEC, et al. (FMC Docket No. 24-16) - Third Party Respondents' Notice of Special Appearance

[EXTERNAL E-MAIL]

Be Aware of Links and Attachments

Dear Mr. Gordon,

We write in reply to yours below.

Initially, please note that I have not included the FMC Secretary as an addressee. In my view, inclusion of the Secretary in an exchange of emails such as this is highly inappropriate.

Consistent with our limited appearance and the pending Motion to Dismiss, SEC declines to waive service and does not authorize me as its counsel to accept service.

Moreover, we disagree with your characterization of our client's position.

Best regards, Jim Hohenstein

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From: Lang, Gordon <GLang@nixonpeabody.com>
Sent: Monday, June 16, 2025 18:09
To: Jim Hohenstein <jim.hohenstein@hplawnyc.com>; secretary@fmc.gov
Cc: Christopher R. Nolan (chris.nolan@hklaw.com) <chris.nolan@hklaw.com>; gerald.morrissey@hklaw.com; kristine.little@hklaw.com; allison.skopec@hklaw.com; Eric Jeffrey <ejeffrey@jeffreyyfenneman.com>; Rebecca Fenneman <rfenneman@jeffreyyfenneman.com>; Kaya Massey <kmassey@jeffreyyfenneman.com>; Nicholas Webb <nwebb@jeffreyyfenneman.com>; Whittaker, Brian <bwhittaker@nixonpeabody.com>; Medina, Martha <mmedina@nixonpeabody.com>
Subject: RE: COSCO v. SEC, et al. (FMC Docket No. 24-16) - Third Party Respondents' Notice of Special Appearance

Dear Mr. Hohenstein,

I write to request that you agree to accept service of the third-party complaint against your clients in the above-referenced action or waive service on your clients' behalf. COSCO will oppose your motion to dismiss, submit that service on your clients under the procedure set forth in the Commission's rules is entirely proper, and that there is no reason for COSCO to serve your clients via other means.

Please let us know your response by June 19, as we would like to avoid having to engage the Commission in an unnecessary dispute and incur unnecessary cost.

Best regards,
Gordon



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